

Argument for the attorney.

The words, the "law of the land," mean "due process of law," and this implies that there shall be some form of legal process, sufficient allegations or charge, due notice to the party proceeded against, the opportunity to answer to and contest the charge or allegations, and to be heard or tried in a legal and regular course of judicial proceedings, by an impartial judge. And these rights exist in all cases, civil or criminal, whether by the exercise of a court's ordinary jurisdiction, with trial by jury, or by the exercise of the discretionary or summary jurisdiction of a court, without the right to trial by jury.*

III. At common law, whether a proceeding be criminal or civil, or of a mixed nature, *if it has the character of a judicial proceeding*, some form of legal process, adapted to the particular case, must universally be instituted or laid as the foundation of *the proceeding*, notice of the same given, and the opportunity presented to the party to make his defence; and to be legally and regularly tried or heard ere any judgment, or order of forfeiture, or deprivation of any *freehold office*, or other legal right, can lawfully be effected or inflicted, *for any purpose*, by any tribunal whatsoever; and if, in any *essential* particular, *the proceeding* is irregular or defective, *the conviction* will not be by "due process of law," and the judgment will be a nullity.†

* Regina v. Baines, 2 Lord Raymond, 1265; Dimes v. Canal Co., 3 House Lords, 759; Ex parte Ramshay, 18 Q. B. 187; Capel v. Child, 2 Crompton & Jervis, 558; Murray's Lessees v. Hoboken Land Co., 18 Howard, 280; Bank of Columbia v. Okeley, 4 Wheaton, 244; Greene v. Briggs, 1 Curtis, 325; In re Pitman, 1 Id. 186; Commonwealth v. Davis, 11 Pickering, 434; Commonwealth v. Dean, 21 Id. 334; Commonwealth v. Phillips, 16 Id. 213; Commonwealth v. Blood, 4 Gray, 32; Fisher v. McGirr, 1 Id. 37; Taylor v. Porter, 4 Hill, 146; Wynehamer v. The People, 3 Kernan, 392; In re Dorsey, 7 Porter, 405; Bank of Columbia v. Ross, 4 Harris & McHenry, 455; McGinnis v. State, 9 Humphreys, 43; Murry v. Askew, 6 J. J. Marsh. 27; Wells v. Caldwell, 1 Marshall, 441; Lewis v. Garrett, 5 Howard's Mississippi, 434; Hoke v. Henderson, 4 Devereux, 15; Ervine's Appeal, 16 Pennsylvania State, 263; Norman v. Heist, 5 Watts & Sergeant, 171.

† Rex v. Lediard, Sayer, 6; The Queen v. Saddlers' Co., 10 House Lords, 404; The Queen v. Smith, 5 Q. B. 621; In re Monckton, 1 Moore's Privy Council, 455; Bowerbank v. Bishop of Jamaica, 2 Id. 470; Smith v. Justices